MP Mahua Moitra foresees rights infringements aplenty, the BSP's Danish Ali raises the spectre of "a police state" where such a law becomes a tool "to settle political scores", and Shiv Sena MP Vinayak Raut feels it will further victimise the teeming mass of undertrials who fill Indian jails.

Legal experts also express apprehensions over the bill. "By now, the abuse of the police's powers of arrest, and the even greater abuse of preventive detention laws in India are well known," says Delhi-based lawyer Gautam Bhatia. "The bill, unfortunately, places the privacy of individuals not convicted of any wrongdoing at the mercy of the State." Others question the 75-year window afforded to store collected personal data for up to 75 years—NCP leader Supriya Sule says this violates Article 21, the newly evolved right to be forgotten, and the rights of prisoners. Privacy advocates fear the inevitable—that data is misused for purposes others than the stated objective. The law is vague on where exactly collection of personal data becomes essential to a criminal investigation. With India yet to pass a data protection bill, cyber security analysts see in these provisions a harbinger of an unregulated surveillance state.

Shah calls the apprehensions unfounded, saying the provisions will only be used in the cases of "heinous crimes", and that rules will be framed to add safeguards against misuse. Asserting that crime prevention is the Act's main objective, he told the Lok Sabha: "Next-generation crimes cannot be tackled with old techniques. We must take the criminal justice system to the next era." Every year, 750,000 cases remain unsolved due to lack of evidence, Shah pointed out, and said a clear forensic trail will help investigating agencies stay two steps ahead of criminals.

Shah was not without support in the House. Midhun Reddy, an MP from Jagan Reddy's YSRCP, said over 70 countries relied on similar laws. The US, UK, France and Germany are among those that take biometrics of people accused of crimes, but here in India Reddy wanted clear-cut assurances from the Centre on political witch-hunts and data misuse. With a government that prides itself on its iron-fisted approach, that perhaps becomes the crux in the immediate sense. ■



ANI

KASHMIR

RETURN OF THE TOURISTS

By Moazum Mohammad in Srinagar

Sometimes, even to those most cussedly determined to relieve their grim life by buying some moments of happiness in transit, reality can shatter the paradise. In 2019, it happened in Kashmir—to thousands who were soaking in the sylvan beauty of places like Gulmarg, Sonmarg and Pahalgam. The blow fell that August. A government directive first asked tourists to leave Jammu and Kashmir, citing a "terrorist threat". In a few days, all of 25,000 tourists scrambled back to their homes on the dusty plains. On August 5 came the annulling of Article 370. What ensued was two and a half years of unrelenting gloom for the tourism industry—one of the Valley's economic mainstays. If at all anyone entertained hopes of a pick-up in 2020, the pandemic extinguished that. Now, in the summer of 2022, tourists are thronging those slopes and verdant trails again, and locals are daring to hope for green shoots.

Before we scan the happy surge, a brief look back at the dark interregnum that preceded it. Besides political uncertainty, Kashmir witnessed large-scale unemployment. About 500,000 jobs were lost by August 2020, as per the Kashmir Chamber of Commerce and Industry. Hotels and houseboats shut shop. Many took up menial jobs, like Riyaz Ahmad, a proud houseboat owner on the Dal Lake. Riyaz saw his savings dribble away—first he was forced to lay off his eight employees, and finally he, too, was on the road.

Now, the cash registers are ringing again. Hotels, guesthouses and houseboats are running at 100 per cent occupancy—all booked till the end